

Plaintiffs' further argue that Defendant cannot make the greater showing of interest of justice required for a cross-complaint against third parties. (Opposition at p. 8: 6-10.) Plaintiffs rely on a citation from the Rutter Group Practice Guide for their position. However, the proposed Cross-Complaint involves the same business relationship and dealings as alleged in Plaintiff's Complaint; thus, the Cross-Complaint will not unreasonably burden or complicate Plaintiff's lawsuit. (*See Garcia v. Roberts* (2009) 173 Cal.App.4th 900, 910 [ordinarily, no prejudice will result from an amendment that is based on the same general set of facts].)

Plaintiff Must Combine His Crossclaims in Exhibit 1 with his Cross-Complaint in Exhibit B

Courts must be able to manage their dockets consistent with the demands of all matters pending before them and in such a way as to provide broad access to justice. Courts have "inherent equity, supervisory and administrative powers" to "control litigation before them" and these powers "are derived from the state Constitution and are not confined by or dependent on statute." (*Cottle v. Superior Court* (1992) 3 Cal.App.4th 1367, 1377.) Pursuant to these inherent powers, courts have been permitted to "fashion[] new forms of procedures when required to deal with the rights of the parties and to manage the caseload of the court." (*Id.* at p. 1377.)

To limit confusion and promote clarity, Plaintiff shall combine his proposed Cross Claims included in Exhibit 1 with his proposed Cross-Complaint in Exhibit B.

Conclusion

The Court is unable to grant this motion at this time due to the procedural defects outlined above. As analyzed above, **the Court continues this motion to provide Defendant time to comply with the mandatory rules and statutes described in the Court's ruling. The Motion is continued to July 31, 2026, at 9:00 a.m., Department 32. Defendant's papers are due 14 court days before the hearing and Plaintiffs' opposition, if any, are due 9 court days before the hearing.**

6. 9:00 AM CASE NUMBER: C24-02519
CASE NAME: SALLY NICHOLS, S.A. VS. COLLINS & ASSOCIATES, LLC
*HEARING ON MOTION IN RE:
FILED BY: NICHOLS, S.A., SALLY ANN
TENTATIVE RULING:

The **Plaintiffs'** unopposed motion to set aside the defaults taken against Defendants Collins & Associates, LLC and Cecil Andrew Collins is granted for good cause shown. **Plaintiffs** must file an amended complaint within ten days of this order.

7. 9:00 AM CASE NUMBER: C24-02701
CASE NAME: ALYSS DORESE VS. AIDEN CIANI
*HEARING ON MOTION IN RE: EXPUNGE THE NTC OF LIS PENDENS
FILED BY:
TENTATIVE RULING:

Defendant Aidan Ciani's motion to expunge the lis pendens recorded on December 31, 2025